

the trustees had an absolute discretion to sell and convert the testator's shares in a Banking Company "*at such time or times as they might think proper*," they were held not to be liable for retaining the testator's shares beyond a year from his decease, but were made liable for other new shares in the bank which they had purchased themselves (*a*).

[**Absolute discretion.** — And where an absolute discretion is given to the trustees to postpone the sale and conversion of the estate, they are not bound by the ordinary rule to convert the property within a year, even although it consists of shares in companies with unlimited liability, and in the absence of *mala fides* they will not be responsible for losses arising to the estate from the non-conversion (*b*).

4. **Retaining investments for infants in specie.** — Where it is for the benefit of infants to retain investments which are not authorized by the terms of the trust, the Court has a discretion to allow such retainer. The Court, however, will not exercise this discretion unless special circumstances are shown to exist, and the mere fact that the unauthorized securities are such as are authorized by § 21 of the Settled Land Act, 1882, and that a loss of income would be caused by a conversion, will not induce the Court to allow the securities to be retained (*c*).]

5. **Personal security.** — An executor is not to allow the assets of the testator to remain outstanding upon *personal* security (*d*), though the debt was a loan by the testator himself on what he considered an eligible investment (*e*). And it will not justify the executor, if he merely apply for payment through his attorney, but do not follow it up by

(*a*) *Edwards v. Edmunds*, 34 L. T. N. S. 522.

[(*b*) *Re Norrington*, 13 Ch. D. 654.]

[(*c*) *Fox v. Dolby*, W. N. 1883, p. 29.]

(*d*) *Lowson v. Copeland*, 2 B. C. C. 156; *Caney v. Bond*, 6 Beav. 486; *Bailey v. Gould*, 4 Y. & C. 221; and see *Attorney-General v. Higham*, 2 Y. & C. C. C. 634; where the *chose en action* is recoverable only in equity,

a *cestui que trust* may take active steps for getting it in, and as to the effect of *cestui que trust's* laches in this respect see *Paddon v. Richardson*, 7 De G. M. & G. 563; *Horton v. Brocklehurst* (No. 2), 29 Beav. 511.

(*e*) *Powell v. Evans*, 5 Ves. 839; *Bullock v. Wheatley*, 1 Coll. 130; and see *Tebbs v. Carpenter*, 1 Mad. 298; *Clough v. Bond*, 3 M. & Cr. 496.